



POLICE DEPARTMENT

December 15, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Ernesto Defreitas
Tax Registry No. 926743
77 Precinct
Disciplinary Case No. 2012-8170

The above-named member of the Department appeared before the Court on June 23 and September 5, 2014, charged with the following:

1. Said Police Officer Ernesto Defreitas, while assigned to the 77th Precinct, on or about January 16, 2012, at about 1430 hours, while off-duty, at or about [REDACTED], Kings County, wrongfully did fail and neglect to comply with the direction of on-duty Police Officer Daniel Berardi to [] show his Department identification, open the rear windows of his personal vehicle, and to exit his vehicle, as required.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Said Police Officer Ernesto Defreitas, while assigned to the 77th Precinct, on or about January 16, 2012, at about 1430 hours, while off-duty, at or about [REDACTED], Kings County, having been directed by on-duty Police Officer Daniel Berardi, to show his Department identification, open the rear windows of his personal vehicle, and to exit his vehicle, said Police Officer Defreitas was discourteous toward Police [] Officer Berardi.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT GENERAL
GENERAL REGULATIONS

3. Said Police Officer Ernesto Defreitas, while assigned to the 77th Precinct, on or about January 16, 2012, at about 1430 hours, while off-duty, at or about [REDACTED], wrongfully kicked or attempted to kick the leg of on-duty Police Officer Daniel Berardi during a stop of Police Officer Defreitas's personal vehicle.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT PROHIBITED CONDUCT
GENERAL REGULATIONS

4. Said Police Officer Ernesto Defreitas, while assigned to the 77th Precinct, on or about and between May 2010 and December 2011, wrongfully did fail and neglect to provide the Department with his current residential address.

P.G. 203-18, Page 1, Paragraph 2 – RESIDENCE REQUIREMENTS
GENERAL REGULATIONS

The Department was represented by Jennifer Kim and Beth T. Douglas, Esqs., Department Advocate's Office. Respondent was represented by Craig Hayes, Esq., Worth, Longworth & London LLP.

Respondent pleaded Not Guilty to Specification Nos. 1-3. He pleaded Guilty to Specification No. 4 and testified in mitigation of the penalty. A stenographic transcript of the hearing record has been prepared and is available for the Police Commissioner's review.

RECOMMENDATION

Respondent is found Guilty in Part of Specification Nos. 1-2 and Not Guilty of Specification No. 3. Having pleaded Guilty to Specification No. 4, he is found Guilty.

FINDINGS AND ANALYSIS

Specification Nos. 1-3

This matter arises from an altercation during a car stop between the off-duty Respondent and on-duty officers. On January 16, 2012, Police Officers Daniel Berardi, Paul Ragone, and two others were assigned to the 73 Precinct. They were on Impact patrol, in uniform and in a marked van.

Around 1430 hours, the officers stopped Respondent's vehicle, an Infiniti, for over-tinted windows. At trial, Respondent indicated that he had the tints installed on his vehicle. It was not

disputed that the tints were in fact illegal and thus gave the officers probable cause to stop the car.

The officers' testimony was that Berardi asked Respondent for his license, registration and insurance information, and to roll down the windows. Berardi wanted the windows rolled down because when he approached the car from behind, he observed movement through the rear window. Respondent refused, saying, "I don't fucking have to." He also refused to turn over the information.

Berardi instructed Respondent to step out of the vehicle and Respondent profanely refused. Berardi opened the vehicle's door and rolled the windows down himself. He told Respondent to step out. Again Respondent refused and said that he was going to call the duty captain if Berardi touched him.

Berardi reached into the vehicle to pull out Respondent. According to Berardi, Respondent, with a cocked fist, "turned his body to the right and he kicked his leg out," hitting Berardi. Ragone, from the passenger side, described it slightly differently: that "the driver kind of leaned over the center console of the vehicle, and as Officer Berardi had the door open and was asking him to step out of the vehicle, the motorist kicked Officer Berardi in the leg."

The officers removed Respondent from the car. Berardi indicated that even though Respondent was struggling with them at this point, the officers did not take Respondent to the ground or handcuff him. Respondent began yelling, "[G]et the fuck off of me, I'm on the fucking job." The officers asked him what job he was on but Respondent refused to tell them where he worked. When they asked where his "ID card" was, however, Respondent said that it was in his wallet, which was in the car. Ragone testified that Respondent specified it was in the center console. Berardi found Respondent's Department identification card in the wallet. Once

he was out of the vehicle, Respondent told Berardi that he did not roll down the windows because he [REDACTED].

The officers informed their sergeant of the situation. Once the sergeant arrived, Respondent became much calmer and cooperative.

According to Respondent, he was scheduled to work a 4x12 tour that day at the adjoining 77 Precinct and thus was due at work at 1500 hours. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

When the officers pulled over Respondent, he completely rolled down the front driver and passenger windows and said that he was on the job. Berardi nevertheless instructed him to roll all of them down and to step out of the car. Respondent acknowledged that he refused to roll down the windows because [REDACTED]. This went back and forth several times. But when he saw that Berardi was preparing to remove him from the car, he got out himself. He told a third officer, who seemed more responsive than Berardi and asked where his police ID was, that his wallet, with his ID, had fallen into the console. After Respondent was out of the car, he also rolled the windows back up after Berardi had rolled them down.

The first and second specifications charge that Respondent wrongfully and discourteously failed to comply with Berardi's instructions to show his Department ID card, open the rear windows of his vehicle, and to exit his vehicle.

There was no actual testimony that Respondent failed to present his ID card. He only was asked where it was once he was out of his vehicle. He told the officers that it was in his wallet, which was in the car. That was where they found it. Of this part of the specification at least, Respondent should be found Not Guilty.

Respondent conceded that he failed to exit the car and to roll down his windows. These both were reasonable requests. It is beyond cavil that officers may ask a motorist to step out of the car for their safety. See Pennsylvania v. Mimms, 434 U.S. 106, 111 (1977); People v. Garcia, 20 N.Y.3d 317, 321 (2012). Asking the motorist of a car with overly tinted windows to roll down those windows was a similar, non-invasive, pro-safety tactic. Cf. People v. Robinson, 103 A.D.3d 421, 421-22 (1st Dept.), lv. denied, 20 N.Y.3d 1103 (2013) (car stop for windows that appeared to be excessively tinted was proper, and probable cause arose after police asked defendant to roll down the windows and then smelled marijuana). A police officer that makes car stops, like Respondent, should have understood that and complied immediately.

Respondent was in a hurry [REDACTED]. He was looking at being late for work. But Respondent's "on the job" status did not exempt him from complying with on-duty officers. If he was worried [REDACTED], he could have rolled the windows down to show the police [REDACTED], and then rolled them back up. In fact, that pretty much is what occurred later on in the encounter once Respondent had exited the car and identified himself. He should have done so at the outset, upon Berardi's directive.

Furthermore, Respondent's failure to comply was discourteous. Cf. Case No. 80864/05, Police Comm'r's Mem., p. 1 (May 1, 2006) (citing officer's "repeated off-duty public display of

discourtesy to a uniformed supervisor and toward her fellow officers, in addition to her baring combative and belligerent behavior” during traffic stop).

Therefore Respondent is found Guilty in Part of Specification Nos. 1 and 2.

The third specification charges Respondent with kicking or attempting to kick Berardi’s leg when Berardi ordered him out of the car. A plain reading of the testimony negates the officers’ testimony that the kick was intentional. Both Berardi and Ragone stated, in sum and substance, that Respondent leaned over the console and *then* kicked his leg out. The natural positioning of the adult human body, seated in the driver seat, would tend to result in the leg kicking out of the car toward the driver side if the driver leaned over the center console – such as to retrieve a wallet or ID card. Respondent indicated that his wallet and ID had, in fact, fallen in that location.

The on-duty officers’ behavior supports a conclusion that any kicking was unintentional. After ordering a belligerent motorist several times to get of the car, and having to pull him out physically, the officers did not take him to the ground or even attempt to handcuff him. Instead, they immediately backed off once Respondent announced he was on the job. If Respondent truly had kicked Berardi, the officers would have arrested him. Their explanation that Respondent identified himself so they stopped all police action is not credible. Therefore, Respondent is found Not Guilty of Specification No. 3.

Specification No. 4

Respondent pleaded Guilty to failing to update his residence information with the Department. This really had nothing to do with the car stop and apparently was uncovered only through routine background information during the investigation into the stop.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on September 29, 2000. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

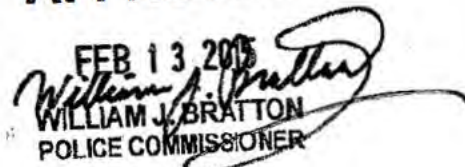
The Court recommends the forfeiture of 15 vacation days as a penalty. It should be noted that the on-duty officers were able to confirm Respondent's identity without calling for backup or any supervisors. Cf. Case No. 79744/04 (Jan. 10, 2005) (20 days for officer who was upset at the way his friends were treated at vehicle checkpoint and demanded to speak to duty captain before showing his ID card). Respondent was not suspended by investigators for his misconduct so the Department's recommendation of 30 vacation days is misplaced even if Respondent had been found Guilty of all the specifications.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner Trials

APPROVED

FEB 13 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

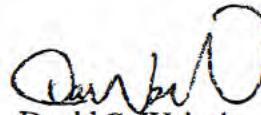
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner -- Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER ERNESTO DEFREITAS
TAX REGISTRY NO. 926743
DISCIPLINARY CASE NO. 2012-8170

Respondent's last three annual evaluations were as follows: he received an overall rating of 3.5 "Highly Competent/Competent" in 2013, and a 3.0 "Competent" in 2012 and 2011. [REDACTED]

In February, November and December of 2005, Respondent was designated Chronic Sick Category "A." He has no prior formal disciplinary record.

For your consideration.



David S. Weisel

Assistant Deputy Commissioner -- Trials